

the importance of the issues at stake. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants*, 148 Cal. App. 4th 390 (2007). The court may impose just terms and conditions for the discovery and may also impose monetary sanctions unless the opposing party acted with substantial justification or other circumstances make sanctions unjust. CCP §§ 2031.060, 2030.090, 2017.020.

Defendant's main argument here is that Plaintiff's belatedly served discovery is irrelevant, because it largely concerns overbroad and disproportionate class discovery. Defendant argues that Plaintiff is unable to certify a class due to the impending trial date, and that he may only meaningfully pursue individual claims at this point. While this may have been true at the time this Motion was filed, it is no longer the case. The Court granted Plaintiff's Motion to Continue Trial on May 11, 2026 and extended discovery deadlines to coincide with a trial date to be set at a future review hearing.

Ask Pete's particularly calls out Request for Production Nos. 42, 50, and 65 as overly broad. Number 65 seeks all documents evidencing any activity by covered employees on your point of sales system during the covered period. The Court agrees that this RFP appears to be overbroad as it would potentially encompass all sales transactions for the restaurant. The same is true for RFP 42, which is unclear and overbroad. RFP 50 is not overbroad as it seeks documents evidencing *termination dates* of employees during the covered periods – not the speculative information Defendant suggests regarding personnel files. The Court declines to impose a protective order as to these RFPs at this time. The parties are directed to meet and confer regarding narrowing the scope of Numbers 42 and 65. Defendant may seek additional relief on this point if the parties cannot resolve the matter through good faith meet and confer efforts.

Sanctions: The Court shall impose sanctions against any party who unsuccessfully makes a motion for a protective order unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. CCP § 2031.060(h). Here, the Court finds imposing sanctions on this Motion would be unjust. At the time the Motion was filed, Defendant was justified in arguing that the impending trial date made the class discovery overly broad. However, before this Motion is set for hearing, the Court continued the trial date and extended discovery deadlines. Therefore, at this time, class discovery is warranted and there is no good cause for a protective order.

The Motion is **DENIED**. Sanctions will not be imposed. Moving party did not submit a proposed order as required by Local Rule 5.17(D). Defendant is to prepare the order.

BOWEN VS. ASK PETE'S CORP

CASE NUMBER: 25CV-0208122

Tentative Ruling on Motions to Compel Further Responses to Discovery: Plaintiff William Bowen moves to compel further responses to Demands for Production, Set One and to Special Interrogatories, Set One. Defendant Aske Pete's Corp dba Pete's Brewhouse & Restaurant opposes the Motions.

On receipt of a response to a demand for inspection or to interrogatories, a propounding party may move for an order compelling further responses if the responses are inadequate. CCP §§ 2031.310(a), 2030.300(a). A motion to compel further responses for production must show "good cause" for the request. CCP § 2031.310(b)(1). The motion must be accompanied by a meet and

confer declaration under Section 2016.040. CCP §§ 2030.300(b) and 2031.310(b). The Declarations of Ryan Kuhn do not state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion, as required by section 2016.040.

Most importantly, Plaintiff's Motions were not filed *on receipt of a response* to their discovery, but rather prior to receiving the timely served discovery responses. This is improper. Plaintiff propounded the discovery at issue on March 24, 2026 by mail and email. Per CCP §1010.6, Defendant had 30 days, plus 2 court days (for service by email) to serve responses. Defendant therefore had until April 27, 2026 to timely serve responses. Plaintiff filed and served these two Motions to Compel Further Responses on April 27, 2026. Defendant served their responses to the discovery later that same day, on April 27, 2026. In other words, Plaintiff filed and served his Motions prematurely, in anticipation of inadequate responses. While the Court acknowledges Plaintiff's rationale concerning the discovery cutoff, the pending motion for protective order, and the impending trial date, the Code does not permit this. Therefore, the Motions are denied without prejudice. The Court declines to reach the merits of whether there is good cause for further production at this time. Considering the recently granted trial continuance, it appears the bulk of the dispute is largely moot. The Court requires the parties to meet and confer in person, by telephone, or by videoconference, to attempt to resolve discovery disputes informally as required by section 2016.040.

Both sides request monetary sanctions pursuant to CCP §§ 2030.290(c), 2031.300(c), and 2033.280(c). Sanctions are mandatory against the unsuccessful party, absent substantial justification or other circumstances that would make imposition of the sanctions unjust. Here, Plaintiff is the unsuccessful party. Plaintiff filed his motion to compel prematurely and without meeting and conferring in violation of the CCP. The Court does not find substantial justification or other circumstances that would make imposition of sanctions unjust. Defendant requests sanctions of \$6,980.50 (10.3 attorney hours at rates of \$515 and \$430 per hour) for the Motion on the Requests for Production, and \$4,539.50 (15.7 attorney hours at rates of \$515 and \$430 per hour) on the Motion for on the Special Interrogatories. The Court finds that 26 attorney hours on these two very similar discovery motions is unreasonable. Additionally, the hourly rates are higher than what is typically awarded by the Court in Shasta County, and no evidence that Defendant could not secure competent local counsel has been presented. Sanctions of \$3,200.00 total for both motions will be awarded, consisting of 8 attorney hours at rate of \$400 per hour.

Plaintiffs Motion to Compel Further Responses to Demand for Production of Documents is **DENIED**. Plaintiff's Motion to Compel Further Responses to Special Interrogatories is **DENIED**. Sanctions of \$3,200.00 total are awarded against Plaintiff. The Court will modify and execute the proposed orders.

CASTELLANOS, ET AL. VS. BEAR TRACKS HOLDINGS, LLC

CASE NUMBER: 25CV-0207058

Tentative Ruling on Motion for Preliminary Approval of Class Action Settlement:

Plaintiffs Genaro Castellanos and Alejandro Gandarilla Parra move for an Order granting preliminary approval of a proposed class action and Private Attorneys General Act (PAGA) settlement between Plaintiffs and Defendant Bear Tracks Holdings, LLC. The Motion is properly noticed and unopposed.